



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8236 (EXTENSION)
FIFTH REVISION January 12, 1993

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8236 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Suzanne Hedges
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 30 1994

(DATE),

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Mazda Motor of America, Inc.
Irvine, CA

July 8, 1994

TRW Vehicle Safety Systems, Inc.
Queen Creek, AZ

July 29, 1994

Ford Motor Company
Dearborn, MI

August 18, 1994

Flint Packaging, Inc.
Flint, MI

September 8, 1994

*Expired
+
Withdrawn*



U.S. Department
of Transportation

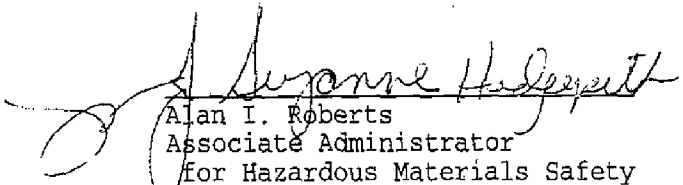
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DOT-E 8236 (PTE)
FIFTH REVISION January 12, 1993

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 8236. The expiration date of the exemption for the party(ies) is July 31, 1996.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 28 1995

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Toyota Motor Sales U.S.A., Inc.
Torrance, CA

October 25, 1994

Howard Ternes Packaging Company
Redford, MI

December 6, 1994

Chrysler Corporation
Center Line, MI

March 6, 1995

CONTINUATION OF DOT-E 8236 (EXTENSION)

SEP 30 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

CONTINUATION OF DOT-E 8236 (PTE)

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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JAN 12 1993

DOT-E 8236
(FIFTH REVISION)

1. TRW Incorporated, Mesa, AZ, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a passive restraint system, and its inflator, for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of inflators and modules for passenger restraining systems as flammable solids, and provides no relief from any regulation other than as specifically stated. NOTE: Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1990. Each of the following is hereby granted the status of a party to this exemption:

General Motors Corporation, Warren, MI - PTE-1.
Flint Packaging, Incorporated, Burton, MI - PTE-2.
Ford Motor Company, Dearborn, MI - PTE-3.
Mazada Motor of America, Inc., Irvine, CA -PTE 4.
TAC Manufacturing, Inc., Jackson, MI -PTE-5.
Automotive Systems Laboratory, Inc., Farmington Hills, NJ -
PTE-6.

2. BASIS. This exemption is based on TRW Incorporated's application dated November 8, 1991, submitted in accordance with 49 CFR 107.105 and supplemental letters dated December 21, 1989 and September 22, 1992. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and the public proceeding thereon and 107.105.

General Motors Corporation's application dated November 25, 1991.
Flint Packaging Incorporated's application dated December 23, 1991.
Ford Motor Company's application dated December 16, 1991.
Mazada Motor of America, Incorporated's application dated February 15, 1991.
TAC Manufacturing, Incorporated's application dated November 5, 1991.
Automotive Systems Laboratory, Incorporated's application dated April 10, 1992.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Passive restraint inflators for, and systems generally identified as Part Nos. 91880-1, 91880-3, 91880-7, 98020-1, 98020-3, 98020-5, E53B-54042B72 and E53B-54043B13 containing not to exceed 105 grams of a propellant identified as TAL 1101 and not to exceed 15 grams of a mixture of boron and potassium nitrate identified in Bureau of Explosives report dated June 21, 1968 as Ignition Composition 1P60 and not to exceed 150 milligrams of a mixture of titanium and potassium perchlorate identified in Bureau of Explosives letter dated February 27, 1984, as Igniter Part Number 174-00381 (DOT approval June 5, 1984, EX-8406010 Class C Explosive). This passive restraint inflator, and this system are classed as flammable solids".

b. Inflators for passenger restraint systems deemed to be scrap material may be classed as flammable solid when packed in accordance with paragraph 7.b. of this exemption.

4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable solid, n.o.s.5. REGULATION AFFECTED. 49 CFR 171.11 (see paragraph 8) 173.153, 173.154, 175.3.6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo aircraft only.7. SAFETY CONTROL MEASURES.

a. Outside packaging prescribed is a DOT Specification 12H or 12B fiberboard box. Packaging of units identified as P/N E53B-54042B72 must also comply with the packaging description on page 3 and Appendix D of the Ford applications.

b. Scrap inflators may be packed and shipped in a DOT Specification 17H drum for disposal purposes only.

8. SPECIAL PROVISIONS

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each vessel and aircraft used to transport packages covered by this exemption.

c. An inflator or a module identified in paragraph 3 above is exempt from the requirements of 49 CFR Parts 100-199 when installed in a motor vehicle. All other packages shipped under the terms of this exemption, must bear FLAMMABLE SOLID labels regardless of net weight of the flammable solid in each inside package. In addition, for cargo vessel shipments only, all vehicles and freight containers containing packages under the terms of this exemption must be placarded FLAMMABLE SOLID.

d. Domestic shipments via air may be made per the requirements of 49 CFR 171.11. This provision also constitutes an exemption under Part 1; 1.1 of the ICAO Technical Instructions to authorize the domestic transportation of inflators and modules for passenger vehicle restraint systems on cargo aircraft using the proper shipping name, hazard class, and UN number (Flammable solid, n.o.s., 4.1, and UN 1325). The inflators and modules must be packaged in accordance with the provisions of the Safety Control Measures prescribed in paragraph 7 of this exemption.

e. The "FLIGHTS OF CARGO-AIRCRAFT ONLY" requirements of Appendix B to 49 CFR Part 107 do not apply to operations subject to this exemption.

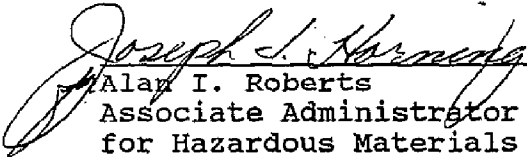
f. This exemption does not grant authority to use foreign airspace or airports outside the United States.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. September 30, 1993.

Issued at Washington, D.C.:

JAN 12 1993



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA, FRA, USCG, FAA.